

**CHAPTER xlix.**

An Act to amend the City of London (Spitalfields Market) Act 1902 and for other purposes.

A.D. 1912.

[7th August 1912.]

WHEREAS the metropolitan borough of Stepney in the administrative county of London (hereinafter referred to as "the borough") is a metropolitan borough constituted under the London Government Act 1899 and is under the management and control of the mayor aldermen and councillors of the borough (hereinafter referred to as "the Council") and the Council are the authority for the execution of the Metropolitan Paving Act 1817 and the Metropolis Management Acts 1855 to 1893 within the borough:

And whereas Spitalfields Market (hereinafter referred to as "the market") is situate in and forms part of the borough and the site of the market has been acquired by the mayor and commonalty and citizens of the city of London (hereinafter referred to as "the corporation") but the said site together with all market dues tolls piccage stallage and other market rights are or are reputed to be leased to Robert Horner for a term of years:

And whereas by the City of London (Spitalfields Market) Act 1902 (hereinafter referred to as "the Act of 1902") it was provided that the corporation should within six months from the thirty-first day of July one thousand nine hundred and two give notice to purchase and acquire all the interest of the said Robert Horner in the market and to manage and carry on the market provided that the corporation should not be compelled to complete such purchase until after the expiration of eighteen months from the giving of such notice:

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And whereas the corporation have failed to acquire the interest of the said Robert Horner in the market and have not submitted to the Council a scheme for improvements, street widenings and other works as provided by section 12 of the Act of 1902 and the area of the lands forming the site of the market is insufficient in extent and the accommodation afforded by the market is inadequate for the requirements thereof and the approaches thereto are inconvenient and insufficient conducing to congestion and obstruction of vehicular traffic and it is expedient that provision be made for the immediate carrying out of the said improvements street widenings and works:

And whereas the failure of the corporation to acquire the said interest of the said Robert Horner in the market has resulted in the Council being obliged in place of the corporation to expend over a long period of time large sums of money in cleansing and scavenging of the public streets and highways adjoining and abutting on and used for the purposes of the market and described in section 13 of the Act of 1902 and it is expedient that such sums of money should be repaid to the Council by the corporation:

And whereas it is expedient to make other provisions as in this Act set forth:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

And whereas an absolute majority of the whole number of the Council at a meeting held on the eighteenth day of October one thousand nine hundred and eleven after ten clear days' notice by public advertisement of such meeting and of the purpose thereof in the *East London Observer* and *Tower Hamlets and Borough of Hackney Chronicle* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the costs and expenses of promoting the Bill for this Act should be charged on the general rate:

And whereas such resolution was published twice in the *East London Observer* and *Tower Hamlets and Borough of Hackney Chronicle* a local newspaper published and circulating in the borough and has received the approval of the Local Government Board:

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole

number of the Council at a further special meeting held in pursuance of a similar notice on the tenth day of January one thousand nine hundred and twelve being not less than fourteen days after the deposit of the Bill in Parliament: A.D. 1912.

And whereas in relation to the promotion of the Bill for this Act the requirements contained in the First Schedule to the Borough Funds Act 1903 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Stepney Borough Council (*Spitalfields Market*) Act 1912. Short title.

2. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And the expression— Interpre-
tation.

“The borough” means the metropolitan borough of Stepney;

“The Council” means the mayor aldermen and councillors of the borough;

“The corporation” means the mayor and commonalty and citizens of the City of London;

“The Act of 1902” means the City of London (*Spitalfields Market*) Act 1902;

“General rate” means the general rate provided by section 10 of the London Government Act 1899 to be assessed made collected and levied by the Council;

“The market” means the market known as *Spitalfields Market* and the lands forming the site thereof and adjoining thereto together with all dues tolls piccage and stallage and other profits and advantages and emoluments whatsoever to such market in anywise appertaining as granted by letters patent to one Balch his heirs and assigns also all lands shops stalls stallages standing places benches buildings works and conveniences used occupied or enjoyed with or part or parcel of the said market and lands or incident thereto

A.D. 1912.

and all the powers rights franchises privileges and emoluments appertaining to arising out of exercised or enjoyed in connection with the said market lands and premises or in any way capable of being exercised and enjoyed therewith.

Corporation
to execute
street im-
provements.

• 3.—(1) The corporation shall within six months after the passing of this Act submit to the Council for their approval a scheme for improvements street widenings or other works in the vicinity of the market and in the event of such scheme failing to receive the approval of the Council the Council may within a further period of three months submit to the corporation an alternative scheme for the like purposes and in the event of such scheme failing to receive the approval of the corporation both the said schemes shall be referred to an arbitrator to be agreed upon between the Council and the corporation or failing agreement to be appointed on the application of either party by the President of the Institution of Civil Engineers Provided always that if for a period of three months after the submission of either of the said schemes the Council or the corporation as the case may be fail to signify their disapproval thereof or their requirements in relation thereto they shall be deemed to have approved of the same:

Provided further that no such scheme shall be approved by the Council the corporation or the said arbitrator as the case may be unless and until full particulars thereof shall have been furnished to the Commissioner of Metropolitan Police and an opportunity shall have been afforded to him of making such representations in regard thereto as he may deem expedient.

(2) As soon as reasonably practicable after a scheme has been approved by the Council or by the corporation or by the said arbitrator (as the case may be) the corporation shall take such steps as may be necessary for carrying the scheme into effect and if further statutory powers are necessary for the purpose the corporation shall in the next available session of Parliament apply for and use their best endeavours to obtain such powers and the Council shall give them all reasonable support in that behalf.

(3) Within two years after the approval of the scheme as aforesaid if no further statutory powers are necessary or within three years after such statutory powers are granted if they be

necessary the corporation shall complete the improvements comprised in the scheme in accordance with the provisions of the scheme and the statutory powers (if any) to be obtained as aforesaid. A.D. 1912.

(4) Section 12 (For protection of Stepney Council) of the Act of 1902 is hereby repealed.

4.—(1) The corporation shall repay and reimburse to the Council within a period of three months after the passing of this Act such costs charges and expenses as may have been properly incurred by the Council between the thirty-first day of July one thousand nine hundred and eight and the passing of this Act in the cleansing and scavenging of the public streets or highways known as North Street East Street South Street West Street and Lamb Street and so much of Brushfield Street Crispin Street and Commercial Street as adjoins or abuts on and is used for the purposes of the market and the corporation shall as from the passing of this Act repay and reimburse to the Council within a period of three months after the same shall be demanded in writing such costs charges and expenses as may thereafter be properly incurred by the Council for the purposes aforesaid. Recoupment
of scaveng-
ing expenses.

(2) Section 13 (For protection of metropolitan borough of Stepney) of the Act of 1902 is hereby repealed.

5. Notwithstanding anything contained in this Act the corporation shall not without the consent of the Metropolitan Water Board alter or interfere with any mains pipes or other works of the said Board. For pro-
tection of
Metropolitan
Water
Board.

6. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and incidental to the compliance with the requirements of the Borough Funds Acts 1872 and 1903 as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Council out of the general rate. Expenses of
Act.

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